

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JORDAN SOUZA,

Petitioner

VS.

SOPHIA BURLEY,

Respondent

) Case Number: FLD-25-397296

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties Petitioner Jordan Souza (Father) and Respondent Sophia Burley (Mother). There is one minor child subject to this proceeding: Jaxen Souza (DOB: 03/13/22).
- 2) On July 7, 2025, the Juvenile Court issued a “Custody Order – Juvenile – Final Judgment” in which Father was awarded sole legal and sole physical custody of the minor child. Mother was given up to 5 hours of professionally supervised visits twice per week to be monitored by Rally Family Services with a “step-up” plan envisioned by the Court.
- 3) On January 30, 2026, Mother filed a Request for Order seeking a modification of the existing child custody and visitation orders. Mother requests:
 - a. Wednesday/Thursday visits with J.S. from 10:00 a.m. – 8:00 p.m.
 - b. Increase to 1 overnight every week from Wednesday at 10:00 a.m. until Thursday at 8:00 p.m. plus an additional overnight each month until the parties reach a 50/50 schedule after approximately 3 months as follows: 2-2-5-5 where Mother is the

Wednesday/Thursday parent and Petitioner is the Monday/Tuesday parent, and they alternate weekends.

c. Exchanges to occur at Cameo House with Father responsible for coordinating pick-up and drop-offs of the minor child.

d. Joint legal and joint physical custody.

e. Establishment of a holiday schedule.

4) On March 2, 2026, the Court held a readiness hearing and referred the parties to Family Court Services (FCS) Mediation on March 26, 2026, and set a return hearing on April 30, 2026.

5) Father did not file an opposition to Mother's motion.

6) On April 30, 2026, the parties appeared and the Court adopted its tentative ruling, with the exception of B(2); B(6); and B(8). The matter was continued to June 18, 2026 for determination of Respondent's request for legal and physical custody; holiday schedule; and to address the potential for further modification of the existing orders.

7) On June 8, 2026, Mother filed a "Declaration of Sophia Burley re: Modification of Child Custody and Parenting Time," which has been read and considered by the Court.

8) June 16, 2026, counsel for Mother filed a "Status Update on Behalf of Petitioner Sophia Burley," which has been read and considered by the Court.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.

2) Mother's request for joint legal custody is GRANTED. However, Father shall continue to have sole physical of the minor child.

3) Commencing April 30, 2026, Mother's parenting time with the minor child on Wednesdays and Thursdays shall be from 10:00 a.m. – 8:00 p.m. each week.

4) Commencing June 24, 2026, Mother's parenting time shall increase to 1 overnight every week from Wednesday at 10:00 a.m. until Thursday at 8:00 p.m.

- 1 5) Mother's Day – Child shall be in the care and custody Mother from 8:00 a.m. – 5:00 p.m. The
2 receiving parent to pick up the child.
- 3 6) Mother's Birthday - Child shall be in the care and custody Mother from 8:00 a.m. – 5:00 p.m.
4 The receiving parent to pick up the child.
- 5 7) Thanksgiving Holiday – Mother shall have care and custody of the minor child during the
6 Thanksgiving Holiday in Odd years. From Wednesday (day before Thanksgiving) at 8:00 a.m. –
7 Sunday at 12:00 p.m. The receiving parent to pick up the child.
- 8 8) Christmas Holiday – Mother shall have care and custody of the minor child during the Christmas
9 Holiday in Even years. From Wednesday, December 23, 2026 at 8:00 a.m. – Sunday, December
10 27, 2026 at 12:00 p.m. The receiving parent to pick up the child.
- 11 9) There shall be no further reviews. Should either parent wish to make further modification to this
12 Court's custody/visitation orders, they shall file a new Request for Order.
- 13 10) Any and all existing child custody and visitation orders, not in conflict with the orders made
14 herein, shall remain in full force and effect.
- 15 11) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 16 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).
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